

Safeguarding Adults at Risk Policy

Aster Group is the overarching brand name of Aster Group Ltd and all of its subsidiaries.

1 Scope

- 1.1 Within the Aster Group, there are registered providers of social housing, registered providers of care and registered charities (Aster Foundation and Enham Trust) with services provided to these through the wider group structure. This policy covers our responsibilities under those contexts and regulatory responsibilities.
- 1.2 This policy applies to adults who live in our properties or use our services, and to all Aster Group, its subsidiaries, employees, and volunteers. It outlines our approach to preventing and reducing the risk of harm to adults who are experiencing or are at risk of abuse or neglect.
- 1.3 Adult safeguarding is defined in the Care Act 2014 as the process of protecting adults aged 18 or over from abuse or neglect where they:
 - Have care and support needs.
 - Are experiencing or at risk of abuse or neglect / self-neglect.
 - Are unable to protect themselves from that abuse / neglect due to their care and support needs.
- 1.4 The Care Act 2014 lists ten types of abuse but states that they should not limit the view of what constitutes abuse or neglect to those types, or the different circumstances in which they can take place. These are:
 - Physical abuse
 - Domestic abuse
 - Sexual abuse
 - Psychological / emotional abuse
 - Financial or material abuse
 - Modern slavery
 - Discriminatory abuse
 - Organisational or institutional abuse
 - Neglect and acts of omission
 - Self-neglect
 - Radicalisation

2 Policy Statement

- 2.1 Aster has a zero tolerance of abuse. We believe that it is unacceptable for anyone to experience abuse, harm or neglect.
- 2.2 We recognise our responsibilities under the terms of the Care Act 2014, and the Mental Capacity Act 2005. As a registered provider, Aster is not a statutory partner under these acts, but we recognise our duty to:
 - Have a Safeguarding Lead
 - Attend and provide information for local Safeguarding Adult Boards and reviews where necessary.

- Cooperate with local authorities in enquiries of suspected adult safeguarding concerns, this could result in us taking action to protect an adult from any actual or risk of abuse or neglect.
- Have a safeguarding policy and procedure.
- Keep clear and accurate records of adult safeguarding allegations, responses, and actions, and then share these with appropriate organisations when in the best interest of the adult at risk.
- Have safe recruitment practices and provide relevant safeguarding training.

2.3 We recognise our responsibilities to keep everyone who comes into contact with our charities safe from harm: this includes volunteers, colleagues and beneficiaries. We know how we are doing through assessing and continuously strengthening the five priority areas of safeguarding as highlighted by the Charity Commission.

2.4 This policy is based on the six key principles for adult safeguarding from the Care Act 2014:

- ❖ Empowerment – presumption of person-led decisions and informed consent.
 - We will make sure that the adult at risk is listened to and understood, respected and their needs are considered when responding to a safeguarding concern.
- ❖ Prevention – it is better to act before harm occurs.
 - We aim to hold up to date information on customers support needs and will use that information to inform our approach to safeguarding.
- ❖ Proportionality – proportionate and least intrusive response appropriate to the risk presented.
 - We will act quickly on any safeguarding concerns.
 - We will notify the local authority Safeguarding Team if abuse is identified or suspected.
 - We will take appropriate action against perpetrators of abuse. When a crime has been committed, we will report this to the police.
- ❖ Protection – support and representation for those in greatest need.
 - We will assume an adult has mental capacity unless it is proved that they do not. We will make a referral to the local authority Adult Social Care Team when we have concerns that a person being abused lacks mental capacity to ensure that a mental capacity assessment can be made or where appropriate follow established best interest protocols.
 - Where necessary, we share information about concerns with agencies such as multi-agency public protection arrangements.
- ❖ Partnership – local solutions through services working in their communities.
 - We work with local authorities and other safeguarding partners and will co-operate with investigations of allegations of harm, abuse, and neglect to an adult at risk.
- ❖ Accountability – accountability and transparency in delivering safeguarding.
 - We have a Designated Safeguarding Lead who is responsible for delivery of the safeguarding policies and procedure and for co-ordinating our response to safeguarding concerns.
 - We hold Safeguarding Panels at least quarterly which shares learning from incidents and case reviews, revising and improving work practices.
 - We have clear procedures for identifying, assessing and managing generic risks associated with safeguarding (e.g., guidance on professional boundaries for lone workers), including how concerns are captured, subsequent actions and raising an alert to the local authority.

2.5 Whilst safeguarding is everyone's responsibility, the responsibility structure at Aster is as follows:

Designated Safeguarding Lead

- Takes lead responsibility for the operational implementation of the Safeguarding Adults policy.
- Ensures the organisation's Safeguarding Adults policy is publicly available and reviewed every two years or in line with regulatory requirements.
- Provides advice, support, and training to staff on safeguarding matters.
- Ensures staff have been trained appropriately, and this is updated in line with legal requirements and best practice guidance.
- Liaises with local safeguarding partners and other agencies to ensure effective safeguarding practices
- Ensures that safeguarding records are kept securely and prepares reports as required for the organisation's board, trustees or other committees as required.
- Measures performance in relation to safeguarding to ensure that the policy and any related procedures remain effective.
- Works with partnership agencies strategically as appropriate.
- Attends the group Safeguarding Panel meetings.
- Ensures that staff understand the requirement for all cases to be recorded on Assure and where appropriate, referred to social care, and the police. Ensure that the safeguarding panel consider cases involving children where applicable in their review process.
- Attends appropriate training and demonstrate evidence of continuing professional development to carry out the role.
- Informs the Operational Scrutiny and Assurance Panel (OSAP) in the event of a serious safeguarding incident, A Learning Disabilities Mortality review (LeDer) or pending serious case review.
- Presents an annual report to OSAP on Aster Group's management of safeguarding throughout the year.

Designated Trustee for Safeguarding (non-exec. Board member)

To ensure appropriate oversight of safeguarding within the charitable side of Enham and to meet the expectations of the Charity Commission (England and Wales) we appoint a Designated Safeguarding Trustee who:

- Takes the lead on Safeguarding matters, ensuring Aster adheres to regulatory requirements and best practice.
- Ensures that the Safeguarding policies and procedures are regularly reviewed in line with best practice and legislation
- Has responsibility for identifying and managing safeguarding risks within the organisation
- Leads the learning lessons following a serious case review.
- Ensures that any safeguarding deficiencies or weaknesses are remedied without delay.
- Ensures a Designated Safeguarding Lead is appointed for Safeguarding Adults and Safeguarding Children.
- Supports the Designated Safeguarding Leads in their role and provides positive challenge.

The Safeguarding Panel

- Promotes awareness and understanding of safeguarding within all departments at Aster.
- Ensures that colleagues record and report safeguarding cases accurately.
- Provides advice and guidance to colleagues, identifying any learning or training needs.
- The Panel meet at least quarterly and conduct case reviews, providing assurance that policy and procedure are being adhered to.
- Will be central to policy and procedure review.

All employees and anyone working on behalf of Aster Group

- Are aware of their safeguarding responsibilities and are alert to any concerns for welfare, and signs of abuse or neglect.
- Report all cases of suspected abuse or neglect.
- Attend all mandatory safeguarding training appropriate to role and setting.
- Are aware of situations which may present risk and manage these.

- 2.6 We will meet our responsibilities in the safe recruitment and selection of colleagues. In accordance with the Talent and Acquisition Policy, to safeguard the needs of adults at risk, Disclosure and Barring Service (DBS) registration and clearance may be required for particular roles. Where appropriate, this check will be repeated at three yearly intervals.
- 2.7 If a colleague has a safeguarding concern that involves another colleague, they are encouraged to seek advice from the People Team. Alternatively, concerns can be reported through the Aster's confidential Speak Up process.
- 2.8 Where we receive an allegation about an employee that constitutes an adult safeguarding issue, an investigation will be conducted in accordance with the Investigation Procedure and the Disciplinary Procedure and a safeguarding referral made to the appropriate local authority.
- 2.9 Any failure to report a safeguarding concern may be regarded as a conduct issue, dependant on circumstances. This will be dealt with under Aster's disciplinary policy and procedure, in conjunction with any local authority enquiry.
- 2.10 As Aster Group provides care services, we have a duty of candour. This is a legal requirement which means that when things go wrong or mistakes happen, the people affected understand what has happened, receive an apology and we learn how to improve for the future. We uphold a rigorous commitment to duty of candour.
- 2.11 For safeguarding alerts in the provision of care, the Care Quality Commission and the adult at risks funding authority will be notified where appropriate.
- 2.12 We will uphold peoples' human rights in line with the Human Rights Act 1998 and fully adhere to the Mental Capacity Act 2005 and Equality Act 2010. We will seek to ensure that we meet and exceed best practice requirements in all areas of our safeguarding practice.
- 2.13 We are committed to inclusivity and accessibility and will endeavour to provide our communication and policies in accessible formats and in other languages when requested or required.

- 3.1 Policy overview sessions will be delivered to relevant teams following implementation of this policy to ensure the content and responsibilities are understood.
- 3.2 Information on this policy and its associated procedures will be given during induction for all employees, volunteers and Board Directors and committee members.
- 3.3 The effectiveness of this policy will be continuously monitored, and the embedding of the policy scrutinised after 12 months by the *Operational Scrutiny & Assurance Panel*
- 3.4 A Safeguarding Panel with clear terms of reference will meet regularly and take collective responsibility for safeguarding oversight and monitoring throughout Aster. A safeguarding headline report will be produced quarterly after each meeting for the Customer Service Operational Leadership Team (CSOLT) and OSAP.
- 3.5 This policy will be reviewed annually unless business need, regulation or legislation prompts an early review.

4 Related Policies and Procedures

This Policy, in conjunction with associated documents outlined below, sets out Aster Group's approach to meeting the requirements outlined by the RSH Neighbourhood and Community Standard 2025.

Documents available to Aster Group colleagues and in the public domain

- 4.1 ASB Policy
- 4.2 Customer Voice Policy
- 4.3 Data Protection, Privacy and Confidentiality Policy
- 4.4 Diversity and Diversity and Inclusion Policy
- 4.5 Domestic Abuse Policy
- 4.6 Financial Wellbeing Policy
- 4.7 Lettings Policy
- 4.8 Neighbourhood Management Policy
- 4.9 Safeguarding Children Policy
- 4.10 Tenancy Policy
- 4.11 Visiting in and Out of Care Homes Policy
- 4.12 Vulnerability Policy

Documents available to Aster Group colleagues only

- 4.13 ASB Procedure
- 4.14 Capacity Procedure
- 4.15 Communal Mechanical and Electrical Procedure
- 4.16 Data Protection, Privacy and Confidentiality Policy
- 4.17 Dignity at Work Procedure
- 4.18 Diversity and Diversity and Inclusion Policy
- 4.19 Domestic Abuse Guidance
- 4.20 Duty of Candour Policy
- 4.21 Electrical Safety Procedure
- 4.22 Honesty Policy
- 4.23 Lifts & Lifting Equipment Policy
- 4.24 MAPPA & High-Risk Assessment Guidance

- 4.25 Neighbourhood Inspections Procedure
- 4.26 Neighbourhood Nuisance Procedure
- 4.27 Responsive Repairs Procedure
- 4.28 Repairs and Maintenance Policy
- 4.29 Neighbourhood Inspection Repairs Reporting Procedure
- 4.30 Probity and Integrity Policy
- 4.31 Resolution Policy
- 4.32 SAFE Procedure (Safety Advice for Employees)
- 4.33 Safeguarding Children Procedure
- 4.34 Safeguarding Procedure
- 4.35 Speak Up Policy
- 4.36 Speak Up Procedure

Key Personnel	Name	Email	Tel No
Designated Safeguarding Lead for Adults	Sharon Bye	Sharon.Bye@ccht.org.uk	07307 169874
Trustee/Senior lead for Safeguarding		Currently in consultation	

5 Governance			
Effective From:	16/07/2025	Expires:	16/07/2028
Policy Owner:	Sharon Bye- Director of Care		
Policy Author:	Policy Officer		
Approved by:	<i>Operational Scrutiny & Assurance Panel</i>		
Scheme of Delegation Reference:	R074	Version Number:	V7.01

Aster Group is our overarching company brand and comprises the following companies and charitable entities. Aster Group Limited, Aster Communities, Aster Treasury plc, Synergy Housing Limited, East Boro Housing Trust Limited, Central and Cecil Housing Trust, Enham Trust, 55 London, Aster Foundation, Aster Living, Aster 3 Limited, Aster Homes Limited, Aster LD Limited, Aster Property Limited, Aster Solar Limited, Silbury Housing Holdings Limited, Silbury Housing Limited.